SHERIFF OF THE HIGH COURT, GWERU N.O

vs

CHINAZIM INTERNATIONAL SMELTING COMPANY (PRIVATE) LIMITED

and

ZIMASCO (PRIVATE) LIMITED

and

CHINAZIM INTERNATIONAL MINERALS CORPORATION (PRIVATE) LIMITED

IN THE HIGH COURT OF ZIMBABWE
MUTEVEDZI J
BULAWAYO, 11 NOVEMBER 2025 and 13 JANUARY 2026

Interpleader application

H. Chimbetete, for the applicant.

C. Mhuka, for the Claimant

T. S. Manjengwah, for the Judgment Creditor

No appearance for the judgment debtor

MUTEVEDZI J: The scourge of judgment debtors colluding with third parties who then falsely lay claim to goods attached in execution of court judgments is not new in interpleader proceedings. It however becomes egregious when the collusion becomes as blatant and shameless as happened in this case.

[1] The background to the issue is that ZIMASCO (the judgment creditor), obtained an order from this Court sitting at Harare in case No. HC32017/17 against a company called Chinazim International Minerals Corporation (Private) Limited (the judgment debtor). In execution of

that court order, the judgment creditor instructed the Sherrif of the High Court (the applicant) to attach the following property: -

i. 1 x Toyota Hilux Double Cab Reg. No. AGE 2161
ii. 1 x Nissan NP300 Double Cab (Non-Runner)
iii. 1 x Mazda BT50 Reg No. ABK4411 (Non-runner)
iv. 1 x Front End Loader (New) + 3 x Front End Loader Buckets
v. 1 x Diesel Tank
vi. 1 x Shackman Tipper Reg No. AEY6077
vii. 1 X Weigh Bridge
viii. 1 x Blue Container
ix. 1 x Generator
x. Steel pipes
xi. 1 x Seater Metal Boat
xii. 1 x 3000l Jojo tank
xiii. 1 x Front end loader (Non-runner)
xiv. 1 x lovol Excavator + 2 x Extra Bins (Non-runner)
xv. 1x Front loader (non-runner)
xvi. 1 x RIG (Non-runner)
xvii. 1 x FAW Reg No. ADL2724 (non-runner)
xviii. 20 x Cuply drums
xix. 1 x Isuzu Reg No. ADY5604 (Non-runner)
xx. 20 x used tyres yellow machines,
xxi. 300 tonnes chrome ore
xxii. Chrome wash plant (Crasher, conveyor belt, ballmill industrial generator, electricity DB boards, chunger, generators, washing and loading bin and other sections, scrap metal)

[2] Thereafter, another corporation named Chinazim International Smelting Company (Private) Limited **(**the claimant) which in more ways than one was clearly related to the judgment debtor, laid claim to all the goods which had been attached. As a result, the Sherrif was forced to file an interpleader notice in terms of r 63(2) and (3) as read with r 59(6) of the High Court Rule, 2021("the Rules"). I heard the matter on 7 October 2025. Soon thereafter, I issued the following order and gave extempore reasons for the decision.

> "1. The Claimant's claim to the goods placed under attachment in execution of judgment HC3201/17 granted by the High Court at Harare be and are hereby dismissed.
> 2. The goods which are set out in the notices of attachment and seizure compiled by the applicant and dated 20 June 2024 are declared executable.
> 3. The Claimant shall pay the costs of the judgment creditor and the applicant at attorney and client scale."

[3] The claimant later requested for my full reasons for the decision. I provide those hereunder.

The applicant's case

[4] The Applicant confirmed being requested by the judgment creditor to execute the court order it had obtained under case number HC3201/17. Pursuant to that, the applicant attached property, machinery and equipment as already described above and in his notices of attachment and seizure. Having no interest in the matter, the applicant pledged to abide by the decision of the court but prayed for an award of costs.

The claimant's case

[5] In its papers, the claimant submitted that it is a duly registered company and in the business of smelting chrome at a very large scale in a district called Zvishavane. Through its representative, it deposed to an affidavit in which it stated that sometime in 2024, the applicant attached its property which it had bought from the judgment debtor on 16 July 2018. When it queried the attachment, the claimant said it was advised that the attachment was pursuant to a court order. Unfortunately, so the applicant's story went, it was not part of the proceedings that had birthed the court order. The Claimant then approached the Sheriff who advised it that there already were pending interpleader proceedings which had automatically stayed the execution. However, on 7 July 2025, the claimant said it learnt that auctioneers duly instructed by the Sheriff had advertised the same property for a sale in execution of the court order in question. It was then that it decided to officially lay claim to the property and instructed the applicant to file these interpleader proceedings. It argued that ChinaZim International Smelting Company (Private) Ltd is a separate entity from ChinaZim International Minerals Corporation (Private) Limited. The property did not belong to the former which is the judgment debtor in case number HC3201/17. It said the Sherrif had therefore wrongly attached its property.

[6] At the hearing, Mr *Mhuka*, who appeared for the claimant, said when the property in issue was attached, it was in the claimant's possession. He however, did not dispute the contention that the claimant and the judgment debtor shared the same premises from which the property was attached. He further said the judgment debtor was no longer operational hence its failure to appear in court. He also argued that the registration books which showed that the vehicles attached were registered in the judgment debtor's name were not proof of ownership. They could not therefore be used as a basis to ascribe ownership of the cars to the judgment debtor.

The judgment creditor's case

[7] The judgment creditor strenuously opposed the claim. In its papers, it argued that the claimant and the judgment debtor are part of one economic entity, controlled by the same directors. It said the two had colluded in an attempt to defeat the execution of the court order. In paragraphs 6-10 of its notice of opposition, the judgment creditor elaborately explained the basis of its allegations of collusion. It said that connivance had not started in these proceedings because the same had occurred in claims, under case numbers HCBC977/24 and HCBBC976/24. In summary, it said after the attachment of the property in question on 20 June 2024, two separate interpleader actions were filed. They both related to claims of ownership of the same property by entities known as Kehrai Investments Private Limited under HCBC977/24 and Liaoning Zhonjin International Mining Corporation trading as Liaoning Sino-Zim International Minerals Co. Ltd under HCBC976/24. The claims, so the argument persisted, were heard and dismissed by this Court on 3 April 2025. The Court declared that all the property which was listed in the notices of attachment and seizure dated 20 June 2024 was executable. It is that same property which forms the basis of the claimant's claim in this case. As a result, the judgment creditor contended that the decision of 3 April 2025 estopped the claimant from making a fresh claim that the same goods be declared not executable. The judgment in those cases essentially determined that the property belonged to the judgment debtor. It is extant and cannot be overturned by the filing of a separate interpleader claim.

[8] In addition, the judgment creditor argued that the judgment debtor's directors and shareholders were, as per the company's CR14 return filed on 3 June 2024 *Qu Ling* (owning 53 shares), *Zheng Fhurong* and *Gua Chao Zheng* (owning 153 shares); and *Licong Wu* and *Jiuping Yan*. It said interestingly, from June 2018 to date, *Guo Chao Zheng* was a director of the claimant company. The judgment creditor further submitted that in terms of the company documents filed under case number HCBC976/24, *Guo Chao Zheng* was also a director and shareholder of Kehrai Investments Private Limited, the claimant therein. In HCBC976/24, the claimant argued that it owned the property which it had imported into the country yet in the current claim, the claimant supported its ownership of the property through an agreement of sale between it and the judgment debtor dated 2018. The judgment creditor urged the Court to note that *Guo Chao Zhen* was a director and shareholder in all three entities that have at one time

or another, laid claim to the attached property and whose claims are mutually exclusive. To the judgment creditor, that relationship spoke to collusion and nothing else. It said the connivance was further supported by the use of the same premises by the claimant herein and the judgment debtor.

[9] At hearing, *Mr Manjengwah* for the judgment creditor was adamant that the Court dealt with the rights of the property in issue and declared the judgment debtor as the rightful owner thereof. He said any contrary decision would create contradictory judgments issued by the same court. He further argued that the claimant knew of proceedings under both HCBC977/24 and HCBC976/24 which threatened its rights as the owner but had not done anything to challenge those claims. He further urged the court to recognise the Sherrif's return which indicated on the notice of seizure that the property was seized from the judgment debtor after it was pointed out by the judgment debtor's Human Resources Manager called *Tawanda Furamera*. Counsel said the claimant had failed to rebut that presumption as it did not explain how the judgment debtor came to be in possession of its property. He referred the Court to the case of *Kazi* v *Sheriff of Zimbabwe*[1].

Issues for determination

[10] There were two questions to be answered in this case. First, the Court had to determine whether or not the claimant was estopped from claiming the same goods in view of this Court's determination that the judgment creditor was the owner of the property and that it was therefore executable. If the claimant was not estopped, the corollary question was whether or not it had proved, on a preponderance of probabilities, that it is the owner of the attached property. In my judgment, I found it convenient to deal with the latter issue first.

The law

[11] Interpleader claims are founded on r 63 of the Rules which is couched as follows:

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[1] [1] SC26-22; in which the Supreme Court outlined that in interpleader proceedings, a claimant must not only prove ownership but must also give a plausible reason why the property was attached from the possession of a judgment debtor or a third party where that was the case.

> 63(1) …
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> (2) Where any person alleges, that he or she holds any property or is under any liability in respect of which he or she is or expects to be sued by two or more persons making adverse claims in respect of the property or liability, he or she may deliver to the claimants a notice and an affidavit setting out the matters referred to in subrules (7) and (8) respectively.
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> (3) In regard to conflicting claims with respect to property attached in execution, the Sheriff shall have the rights of a claimant.

[12] The rule is that in interpleader proceedings the claimant must set out facts and evidence which constitute proof of ownership of the property which is the subject of contention. The point was underscored in the case of *Muzanenhamo* v *Fishtown Investments (Pvt) Ltd & Ors*[2], where it was held that the claimant must prove on a balance of probabilities that it owns the property. That requirement is clear and self-explanatory. It needs no emphasis.[3]

[13] As stated earlier, it is not in dispute in this case, that when the property was attached, it was in the possession of the judgment debtor and at its processing plant. According to the Sheriff of the High Court's return, the property was actually pointed out to him by an employee of the judgment debtor. That employee said the property belonged to the judgment debtor. Once that happened, it created the presumption that the judgment debtor owned the property. The claimant does not only have the duty to prove ownership but to also provide a satisfactory explanation backed by acceptable evidence as to why the judgment debtor was in possession of the property if it is to rebut the presumption.[4] At the hearing, Mr *Mhuka* in no uncertain terms, said he could not explain how the property in question came to be pointed out to the Sheriff by the judgment debtor's manager because he had no instructions in that regard. Needless to state, it does not help a claimant's cause to simply make bald and unsubstantiated claims that the property was in the claimant's possession particularly in the face of irrefutable evidence that it was attached from the possession of the judgment debtor. The Sherriff's return is an official document which carries significant evidentiary weight. It is prima facie proof of

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[2] SC8-17

[3] See *Welli-Well (Private) Limited v Malvern Imbayago & The Sherriff of Zimbabwe* SC08-21, *Sabarauta v Local Government Pension Fund & Anor* SC77-17, *Muzanenhamo v Fishtown Investments (Pvt) Ltd & Ors* SC8-17; and *Sheriff of High Court v Senanga Safaris (Pvt) Ltd & Anor* HB13/19.

[4] See *Kazi v Sheriff of the High Court of Zimbabwe & Ors* SC26-22, *Sheriff of the High Court of Zimbawe v Majoni &Ors* HH689-15

any matters stated in it. A court is bound to accept as true, any such stated matters except in instances where a party who disputes the return has proven otherwise. As demonstrated by Mr *Mhuka'*s abdication to explain the issue, it remained uncontroverted that the property in issue was attached whilst in the possession of the judgment debtor. The claimant therefore failed to explain how the judgment debtor came to be in possession of its property.

[14] In a bid to prove ownership of the property, the claimant attached to its papers, an investment licence issued by the Zimbabwe Investment and Development Agency ("ZIDA"). Unfortunately, that licence did not prove anything. It neither showed that the claimant has any assets in the country nor did it do anything to identify the property in issue here. It was therefore, useless in the circumstances. The claimant further attached what it purported to be an agreement of sale between it and the judgment debtor. As it turned out, that document was nothing but a poorly designed sham. Instead of helping the claimant's cause, it actually threw it down the precipice. As demonstrated by the judgment creditor, it made enquiries with the Central Vehicle Registry (CVR) which disclosed the dishonesty at the centre of the claimant's claim to the property. The records at CVR, illustrated that a number of the vehicles listed in the purported agreement of sale were not in existence at the time that 'agreement' was concluded. For instance, the reports indicated that the Toyota Hilux Double Cab Reg. No. AGE2161 was only imported into Zimbabwe on 11 July 2023 and registered on 13 July 2023. Further, the documents also demonstrated that vehicle registration number AEY6077 had not been assigned to any vehicle in July 2018. Even worse was that vehicles ADI2724 and ABK4411, were registered on 10 May 2014 in the name of the judgment debtor. They remained so registered as at the date of the hearing of this case.

[15] What the above proved was that the agreement of sale was a concocted document. It was impossible for the sale to have included vehicles that had not yet been imported into the country and which were only registered years after that purported sale. The indiscretions thoroughly support the judgment creditor's allegations of collusion. The claimant's false claim is worsened by the similarities in the description of the various items on the so-called agreement of sale and the notices of attachment and seizure compiled by the Sherrif. It could not have been a coincidence that the list on the Sherrif's notices is similar in all material respects, to the list on the agreement of sale. In fact, the agreement of sale is a

mirror image of the Sherriff's list complete with the mistakes which the Sherriff apparently made. Yet it was not disputed that the Sheriff did not compile his list using the parties' agreement of sale. Instead, he listed the items as he attached them. For instance, the Sheriff's return mistakenly indicated a vehicle with registration number ADL2724. The same car, with the same mistake, appears on the agreement of sale as ADL2724 yet on the ground its correct registration number is ADI2724. This can only speak to connivance between the claimant and judgment debtor. This shows that the agreement of sale was fabricated to counter the execution of the attached property. There are various other spelling mistakes common to both lists equally betraying that the agreement of sale was drawn using the list of items already attached by the Sherriff.

[16] As correctly argued by Mr *Manjengwah,* the relationship between the judgment debtor and the claimant cannot be ignored. It smacks of incest. Both companies are under the control of the *Zheng* family. The judgment debtor and the previous claimants in HCBC976/24 and HCBC977/24 cannot be treated as separate corporations existing independently of each other. The intersection of directors in the different entities involved in this matter was of serious concern to the Court. It makes the entities more or less one and the same thing. The purported transfer of the assets from the judgment debtor to the claimant could only have been an elaborate scheme designed to defeat creditors' claims especially when regard is had to the clumsiness apparent in the agreement of sale. The claimant did not dispute that the directors of the three companies might be related and that one of the directors, *Guo Chao Zheng*, appears in all three companies. It is admitted that that relationship on its own could not take away the separate legal personalities of the companies but there was more to it. The sole director of the Claimant, *Guo Chao Zheng* is a shareholder of the judgment debtor. He was part of the negotiations for the sale of the property in question from the judgment debtor to the claimant. He was part of the decision-making process. It is also not disputed that both the buyer and the seller, not only at the time of the purported transaction but to date, operated from the same offices, at number 6 St Breock Close, Mount pleasant, Harare.

[17] The claimant said after the property had been attached and it had approached the Sherrif for answers, it was advised that there was a party who was already claiming the same property as its assets. With the full knowledge that a third party unrelated to it was

claiming its property, the claimant decided not to do anything about it. That course of action defies logic because the third party could have easily succeeded in claiming the property at the expense of the claimant. It would have been logical, in fact it would have been absolutely imperative, that the claimant applied for joinder in those proceedings. Not surprisingly, it folded its hands because it had no claim to initiate only devising the current stratagem when the first one had yielded nothing. That can only show that the claimant was well aware that the success of the third party in claiming the goods in question would be its success as well. It is the reason why this current interpleader action was belatedly filed and only after the third party had been unsuccessful in court. Clearly, the judgment debtor and the claimant cannot be separated. The case falls on all fours with that of *Anderson Manja & 98 Ors v The Sherriff of Zimbabwe & Anor*[5] wherein the Supreme Court put the issues as follows:

> "I am of the view that the court a *quo* completely disregarded important facts pointing to the inseparable nature of the second respondent and the judgment debtor. The court a *quo* completely ignored the evidence showing that even the alleged sale of the mining claims by the judgment debtor to the second respondent was a hoax. The board resolution which stood as proof of the sale agreement, there being no agreement of sale at all, shows that a director of the seller also represented the purchaser. Andrew Lawson attended the meeting which resolved to sell the claims to the second respondent as a director of the judgment debtor. He was part of the decision-making process. At the same time, he was the holder of a power of attorney issued to him by the second respondent. It empowered him to take delivery of the mining claims from the judgment debtor on behalf of the second respondent. He literally acted as both the seller and the purchaser. If that does not point to a sham, nothing will."

See also the cases of *Cape Pacific Ltd v Lubner Controlling Investments (Pty) Ltd* [6]and S*herriff of Zimbabwe v K.M Auctions (Pvt) Ltd & Anor*[7].

[18] A further assessment of the alleged sale reveals that the purchase price was said to have been paid in cash. The claimant did not submit any receipts for the transaction. The method of payment must have been intended to mask the absence of paper trail such as bank documents, for the transaction.

[19] All the above served to demonstrate how miserably the claimant failed to prove, by any standard of proof, the ownership of the property. I could have dismissed the interpleader application on this basis alone but for purposes of completeness, I chose to also deal with the point of issue estoppel raised by the judgment creditor. I have already stated that

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[5] SC9-21
[6] 1995 (4) SA 790 (AD) at 803-804;
[7] HH803-15

Mr Manjengwah contended that the two-interpleader summons under HCBC976/24 and HCBC977/24 were determined and dismissed by this Court. In that regard, the Court resolved the question of the ownership of the property when it said it belonged to the judgment debtor and was executable. That determination estopped the claimant from raising the current claim. In the case of *Barlow v Regent Estates Co Ltd* [8]it was held that:

> "A judgment of a Court of competent jurisdiction determining the status of a person or thing, or the disposition of a thing (as distinct from a particular interest in it of a party to litigation.) A judgment in *rem* is a judgment which is conclusive as against all the world in whatever it settles as to the status of a person or property, or as to the right or title to the property and as to whatever disposition it makes of the property itself, or of the proceeds of its sale. All persons regardless whether or not they are parties to any legal proceedings are bound by a judgment in rem and as such are estopped from averring that the status of persons or things, or the right or title to property is other than what the Court has by its judgment declared or made it to be."

[20] The claimant argued that the two orders of the Court do not relate to the claimant but instead to third parties therein. That argument is baseless. As shown in *Barlow* (supra), the judgments in HCBC976/24 and HCBC977/24, were judgments *in rem*. They bound not only the parties to the disputes but everyone else. In *Wolfenden v Jackson* [9]the Supreme Court said: -

> "…where a final and definitive judgment is delivered by a competent court the parties to that judgment or their privies **(or in the case of a judgment in rem, any other person)** are not permitted to dispute its correctness." (Bolding is my emphasis).

[21] On the strength of the cited authorities, there was no debate that the claimant was estopped from making fresh claims regarding the ownership of the property.

Costs

[22] The judgment creditor moved the court to award it costs on the higher scale given the disturbing allegations in this case which the claimant failed to rebut. I have already found that there was naked connivance and collusion between and amongst the claimant, the judgment debtor and other parties related to them in this case. Worse so, despite the claimant being aware that the earlier two judgments of this Court had conclusively dealt with the execution of the same property, it still had the temerity to approach this Court claiming ownership of the goods which it knew belonged to the judgment debtor. That conduct is despicable and borders on an attempt to frustrate the course of justice. The judgment debtor

[8] [1949] 2 All ER 118
[9] 1985 (2) ZLR 313 at 313B-C

has not been able to execute a judgment which it obtained a long time ago due to the nefarious attempts by the claimant and those who chose to conspire with it. All things being equal, in this jurisdiction costs are awarded on the ordinary scale, but the judgment creditor clearly made a case for me to depart from the standard course and award them at a higher scale. The claimant's conduct was reprehensible and I could only express my displeasure to it by mulcting it with costs on a higher scale as prayed for by the claimant.

Disposition

[23] It was for the above reasons, that I inevitably found that the claimant was not only estopped from pitching this claim to the property but that even if it had not been so estopped, it failed to prove, on a balance of probabilities, ownership of the property as required by law. I dismissed the claim and ordered that: -

a. The Claimant's claim to the goods placed under attachment in execution of judgment HC3201/17 granted by the High Court at Harare be and is hereby dismissed

b. The goods which are set out in the Notices of attachment and seizure compiled by the applicant and dated 20 June 2024 are declared executable

c. The claimant shall pay the costs of the Judgment Creditor and the Applicant at attorney and client scale.

MUTEVEDZI J…….

Messrs Coghlan, Welsh and Guest, applicant's legal practitioners
Messrs H Tafa and Associates, claimant's legal practitioners
Messrs Wintertons, judgment creditor's legal practitioners